



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202302498 (Incident Date: March 25, 2023) regarding Sergeant Eric Warren, Tax No. 951422 (DADS No. 2024-31340)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202302498, pertaining to Sergeant Eric Warren. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Warren would be detrimental to the Police Department's disciplinary process.

After a review of the evidence, the Police Commissioner finds that Sergeant Warren did not intentionally damage the complainant's ID card. The complainant disregarded the Sergeant's direction and damaged the card when she tried to pull it out from underneath Sergeant Warren's foot. However, the Police Commissioner does agree with the CCRB's substantiation of the other two allegations.

Sergeant Warren has no formal disciplinary history and no substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation that he damaged the complainant's property. Additionally, the Police Commissioner intends to impose formalized training for the allegations regarding the improper search and use of his body-worn camera.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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September 16, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. SGT Eric Warren
Disciplinary Case No.: 2024-31340

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 11, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and take no disciplinary action against Sergeant Warren as to Specification One (1) pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. The letter also states that you agree with the findings of the CCRB as to Specifications Two (2) and Three (3), the improper search and use of his body-worn camera but disagree with the imposition of Charges and Specifications and intend to impose a penalty of formalized training. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against SGT Warren would be detrimental to the Police Department’s disciplinary process. Specifically, as to Specification One (1), Deputy Chief Marino stated that you disagree with the findings that SGT Warren intentionally damaged the complainant’s ID card. Deputy Chief Marino stated that based on the evidence, it was the complainant who damaged her own ID card. CCRB disagrees with this determination. Although § 87(2)(b) attempted to take her ID card back from SGT Warren when it fell out of his pocket and onto the ground, the BWC footage shows that the ID card became damaged after SGT Warren stepped on it. Patrol Guide Procedure 200-02 states that officers are to protect the lives and property of fellow citizens. Based on the evidence, SGT Warren failed to safeguard § 87(2)(b) ID as required by PG 200-02, when he chose to step on it causing damage.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB would request that Charges and Specifications be served on SGT Warren.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202302498 (Incident Date: March 25, 2023) regarding Sergeant Eric Warren, Tax No. 951422 (DADS No. 2024-31340)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 16, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant Eric Warren. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Warren for the reasons expressed in my September 11, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegation that he damaged the complainant’s property. Additionally, the Police Commissioner directs that Sergeant Warren receive formalized training for the allegations regarding the search and the use of his body-worn camera.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office